

# USAR pitch deck

## PITCH — USAR — VERDICT

**PROPOSED — PENDING ADJUDICATION** — No entry today at \$18.29; both benches land on FLAT into and after the 8/28 shareholder vote, with pre-registered reopen conditions below.

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### What we believe

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USA Rare Earth is about to become a different company. On August 28, 2026 its shareholders vote on buying Serra Verde, a Brazilian ionic-clay rare-earth producer, and if it passes, roughly 127 million new shares get issued and the company's incoming CEO is Serra Verde's CEO.

We believe three things, in descending order of confidence:

- 1. The numbers being used to sell this deal were written by people whose own auditor found their books were not reliable.** Serra Verde's audited financials disclose material weaknesses for both 2025 (no formal accounting policies or controls, no separation of duties, no journal-entry review) and 2024 — where the disclosure is that the initial financial statements handed to the auditor “did not reflect all known accounting transactions.” The person who authored the \$550–650M run-rate profit projection becomes CEO of the combined company on October 1. This was disclosed two trading days before the vote.
- 2. The headline “\$1.55 billion capitalization completed” is not what the filing says.** The company's own 8-K states that \$750M of government money is funded, and that the \$500M bank facility “has not been documented, closed or funded, and will not be funded on or prior to the closing of the Merger,” that the banks retain discretion to decline to fund, and that the commitment expires December 31, 2026. The remaining \$300M is forward purchases spread over five years. The press release and the filing tell different stories on the same day. ([8-K, Aug 24, 2026, Item 8.01](#))
- 3. At the company's own published assumptions, the acquired business is roughly worth today's price — not a multiple of it.** Run management's own deck through a generous valuation and Serra Verde plus a placeholder for the existing magnet business plus the cash comes to about \$17/share against an \$18.29 tape. That is not a bargain. It is also not, on its own, a short — see below.

What we do **not** believe: that we have proven the stock is worth \$11. Our own bear bench's precision on that point did not survive review.

### What the market believes

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The market believes this is the American answer to Chinese rare-earth dominance, funded by the U.S. government, and that the acquisition takes the company from \$13M of trailing revenue to \$550–650M of annual profit by the end of 2027 and roughly \$1.8B by 2030. Those are the numbers Wall Street is carrying.

The market is not blind to the risk: the stock is 58% below its 52-week high of \$43.98 and 40% below its six-month high of \$30.70. But it is 60% above its low of \$11.45, and it carries a \$4.48B market value on 244.7M shares against \$13.2M of trailing revenue. Strip out the \$1.53B of cash and add back the \$364M warrant liability and the market is paying roughly \$3.3B for a business that did \$5.8M of revenue last quarter — before the acquisition is even counted.

On the day the “\$1.55B capitalization completed” release went out, the stock fell 5.04%. That is a market that read the same filing we did — though we could not prove it, because we never ran a control against the rest of the sector, which also fell that day.

## Why we might have edge

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- **We read the filing instead of the press release.** The gap between “the government provided \$750M” (true, and up from \$500M) and “\$1.55B capitalization completed” (not what the document supports) is available to anyone who reads twelve pages of an 8-K filed four days before a vote. Most people won’t, in the two trading days available.
- **We found the accounting-quality disclosure.** Two consecutive years of material weaknesses at the target, disclosed on the eve of the vote, is the kind of thing that gets absorbed into a merger news cycle and re-emerges eighteen months later as a restatement or impairment.
- **We built the valuation from the company’s own published assumptions rather than arguing with the story.** 4,400 tonnes of product at \$190/kg is management’s basis, not ours. Working forward from it produces a number near today’s price. That framing — “what does the prize have to be worth for this to work?” — is where our process has historically added value.
- **We caught our own bear bench overreaching,** which is worth as much as the bear case itself. The kill was presented as arithmetic; it was arithmetic plus one unsourced assumption large enough to reverse the answer.

## Why it might be priced in

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Substantially, it probably is. The stock is already down 40% from its six-month high. The dilution is public. The government money is public. The material-weakness disclosure is in a filed 8-K, which means it is legally public even if it isn’t widely read. There is no obvious information asymmetry here — only an attention asymmetry, and attention asymmetries close fast in retail-heavy names.

Two further reasons to doubt our edge:

- **We could not measure crowding, short interest, or trading bands.** Our broker data connection was refused to both benches this session. We are flying without the instrument that normally tells us whether a divergence is real or whether we are simply late.

- **Our “the market sold the good news” evidence is weak.** The -5.04% came from a sector-wide article. Rare-earth names moved together. Without a peer control we cannot claim the market specifically punished this filing.

## What could go wrong

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*(This is the pre-mortem. It assumes we entered — at the reopen level, since we are flat today.)*

**Failure #1 — We buy the \$11 reopen and \$11 was never a floor.** Our bear bench derived a “floors-plus-upside” value of roughly \$10.65/share by assuming Serra Verde captures 70% of any price realized above its contractual floor prices. **That 70% figure is not in any document we verified.** The 8-K contains no offtake pricing terms at all. Serra Verde’s own release says only that it will “share the benefits of received prices above the agreed floor prices” — with no percentage. If the real sharing is 30%, the downside case is materially worse than \$10.65 and \$11 is not support, it is a waypoint. *Tripwire: the sharing percentage appearing in primary text (technical report, DEFM14A, or a definitive offtake exhibit). Monitorable.*

**Failure #2 — The projections were never real, and we find out via restatement.** Serra Verde is a privately held British Virgin Islands company whose 2024 financials, per its own auditor, omitted known transactions. We never obtained Serra Verde’s standalone debt. Our pro-forma cash figure of ~\$1.12B is USAR-only, which makes every valuation in this deck flattering. If there are obligations at the target we cannot see, or if the 4,400-tonne / \$190-per-kg basis rests on estimates that were never controlled, the loss doesn’t arrive as a slow re-rating — it arrives as an 8-K. **This one has no leading tripwire.** A restatement is the event, not a warning of the event; a Form 8-K Item 4.02 (“non-reliance on previously issued financial statements”) is the loss, already realized in the tape by the time we read it. **Unknown-unknown class: target-side books opacity** — a private, foreign, control-deficient target whose numbers become our numbers via purchase accounting, where the first observable signal is the correction itself. We can arm a sensor on Item 4.02 filings; we cannot arm one that fires beforehand. We should size as if this is uninsurable, because it is.

**Failure #3 (reflexive and structural) — We bid into flow we ourselves predicted.** Three flows are dated and known: - ~126.8M merger shares are issued on or about August 28 — a more than 50% increase in the share count in one day. - The registration and lock-up step-down on those shares, plus the January PIPE shares and the Commerce Department’s 16.1M shares and 17.6M-share warrant, sits 90–180 days after close — roughly late November 2026 through February 2027. - The \$500M bank commitment dies December 31, 2026 if not documented.

Our reopen level (\$11) and the window in which that supply hits are the same window. Buying a weak tape that our own analysis says is *caused by* mechanical supply violates the desk’s rule against bidding into flow we predicted. If we enter at \$11 in December and the registration step-down is what put it there, we are the exit liquidity for the step-down, not the buyer of a dislocation.

On our own size: we cannot state our position against average daily volume, because the broker feed was denied. A 0.25–0.5% book position in a \$4.5B-cap Nasdaq name with heavy retail participation is

almost certainly immaterial to the tape — but “almost certainly” is an assumption here, not a measurement, and it should be measured before any order is staged.

Doctrine interactions worth naming: the crowding gate we normally apply to every divergence could not be run. The “fairly-paid risk is ownable” default cannot apply, because fairness is exactly what is unverified. And the fact that this is a government-backed policy story means the price can stay above any valuation we produce for a long time on flow that has nothing to do with the asset.

**If this position loses money, the most likely reason will be that we anchored on a valuation built from a target’s own projections, and those projections — authored under two consecutive years of audited material weaknesses by the man who becomes CEO nine days after closing — turned out to be wrong in a direction and magnitude that no filing disclosed until after the loss was already in the price.**

## What we checked ourselves

| Claim                                                                                                   | How checked                                                    | Found                                                                                                                                                                                                                                                            | Confirmed?                               |
|---------------------------------------------------------------------------------------------------------|----------------------------------------------------------------|------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|------------------------------------------|
| Special meeting is 2026-08-28                                                                           | Read the 8-K text directly (SEC blocked us; fetched via proxy) | “USAR will hold a special meeting of stockholders on August 28, 2026”                                                                                                                                                                                            | <b>Yes</b>                               |
| “\$1.55B capitalization completed”                                                                      | Compared press release to same-day 8-K                         | \$750M government money funded; \$500M bank facility “has not been documented, closed or funded”; \$300M is 5-year forwards                                                                                                                                      | <b>Yes — the two venues disagree</b>     |
| Closing condition was “satisfied”                                                                       | Read the amendment language                                    | Condition was amended so the requirement “correspond[s] to the financial support that the U.S. government confirms has been provided” — the requirement moved to meet the delivery                                                                               | <b>Yes</b>                               |
| Government support went <i>up</i> (\$500M→\$750M)                                                       | Same 8-K                                                       | True and funded. Our bear bench framed the whole item as inverted; the <i>money</i> leg genuinely improved                                                                                                                                                       | <b>Yes — and this cuts for the bulls</b> |
| Serra Verde material weaknesses, 2024 and 2025                                                          | 8-K primary text, both benches independently                   | Confirmed verbatim, both years                                                                                                                                                                                                                                   | <b>Yes</b>                               |
| CEO succession (open item from the brief)                                                               | 8-K 7/20/26, Item 5.02                                         | Moraitis (Serra Verde CEO since Jan-2023) becomes USAR CEO 10/1/26; Humpton retires                                                                                                                                                                              | <b>Yes</b>                               |
| Prize-table arithmetic (\$16.96/share at the deck’s own assumptions)                                    | Blue bench recomputed independently                            | \$16.95 — arithmetic is sound                                                                                                                                                                                                                                    | <b>Yes</b>                               |
| <b>“Every disputed input is already resolved in the bull’s favor”</b> (our bear bench’s headline claim) | Blue bench audited each input                                  | <b>Refuted.</b> The existing magnet/Round Top/Less Common Metals/Carester business was carried at \$0.5B with no cited source, while the market prices that same business near \$3.3B. That single unsourced input is worth about \$7.50/share — larger than the | <b>No — our own error</b>                |

| Claim                                                                     | How checked                                                             | Found                                                                                                                                                                                                                                                                                                      | Confirmed?                         |
|---------------------------------------------------------------------------|-------------------------------------------------------------------------|------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|------------------------------------|
|                                                                           |                                                                         | \$1.33/share gap the kill rested on. The verdict flips at any carry above roughly \$1.0B.                                                                                                                                                                                                                  |                                    |
| <b>“70% upside participation is real”</b> (load-bearing in our bear case) | Blue bench searched the 8-K and Serra Verde’s release for pricing terms | <b>Unverified.</b> The 8-K contains no offtake pricing terms. Serra Verde’s release says only “share the benefits of received prices above the agreed floor prices,” with no percentage. Our bear bench asserted a number that no document we hold supports.                                               | <b>No — our own error</b>          |
| Bear’s bottom-up “the basket doesn’t decompose”                           | Blue bench checked the tonnage basis                                    | <b>Reduced.</b> The bear spread revenue across a tonnage that includes lanthanum; the deck’s 4,400 tonnes is explicitly <i>after lanthanum removal</i> , so the payable mix is richer than modeled. Our bear’s own “what would change my mind” test was partly satisfied against him.                      | <b>Partly — our error</b>          |
| Bear’s “the 40% drawdown is the January PIPE repricing”                   | Checked the date window                                                 | <b>Wrong.</b> The six-month window opens around 2026-02-23, entirely after the PIPE closed. A high set inside that window cannot be PIPE repricing. Cause of the drawdown: unidentified.                                                                                                                   | <b>No — our own error</b>          |
| Bear’s “the market sold the good news” (– 5.04%)                          | Blue bench looked for a control                                         | No peer/sector control was run; the underlying source is a sector-wide article. Downgraded to plausible-only.                                                                                                                                                                                              | <b>No — insufficient</b>           |
| Bear used 371.6M shares while calling it a floor                          | Blue bench                                                              | Self-inconsistent, though correcting it moves the answer further in the bear’s own direction. Immaterial.                                                                                                                                                                                                  | <b>Minor error</b>                 |
| Blue’s own counter-math (“half the market carry prints \$19.2”)           | Recomputed for this deck                                                | Half of \$3.3B is \$1.65B; that carry produces about <b>\$20.05</b> , not \$19.2. Blue’s flip point (~\$1.0B carry) is correct; its illustrative figure is slightly understated.                                                                                                                           | <b>Minor error — blue’s</b>        |
| Bear’s cash figure (\$1.12B pro-forma net cash)                           | Blue bench, pro-bear direction                                          | <b>Generous to the bulls.</b> It excludes any separation-plant capital spending (the \$190/kg assumes fully separated oxide; Serra Verde currently sells mixed concentrate) and roughly five quarters of burn to end-2027 — about \$550M at \$56.9M operating plus ~\$54M capex per quarter.               | <b>No — bear was too kind here</b> |
| Satellite thermal signal at the Oklahoma plant                            | Bear ran it, blue audited                                               | Bear called it a firing signal (heat flat-to-declining against \$108.4M of first-half capital spending). Blue downgraded it: 1.7°C excess is near instrument noise and the baseline predates commissioning. The hard evidence for the same conclusion is \$5.8M of quarterly revenue, not the temperature. | <b>Downgraded to plausible</b>     |

| Claim                                                                                                | How checked               | Found                                                                                                                                                                                                             | Confirmed?                    |
|------------------------------------------------------------------------------------------------------|---------------------------|-------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|-------------------------------|
| Satellite construction check at the same site                                                        | Bear ran it, blue audited | Bear called it firing (no parcel-scale buildout). Blue: the most recent usable image is 2025-10-10, which predates essentially all of the 2026 capital spending. The instrument cannot see the period in dispute. | <b>No — unusable</b>          |
| Share-supply calendar (lock-ups/registration)                                                        | Both benches              | Fires. January PIPE, 126.8M merger shares, Commerce Department 16.1M shares + 17.6M warrant. Argues specifically against buying into the vote.                                                                    | <b>Yes</b>                    |
| Import/customs records for feedstock arrivals                                                        | Both benches              | Zero records returned — not “no shipments,” but “no data.” Both benches declined to score it.                                                                                                                     | <b>Uninformative</b>          |
| Eight other automated checks (consumer app reviews, product virality, three city permit feeds, etc.) | Both benches              | All false matches on an industrial mining/magnet company. Our dispatch layer is manufacturing eight empty results per industrial review and needs narrowing by industry code.                                     | <b>Process defect, logged</b> |

**Net of our own audit:** four substantive findings survive (accounting quality at the target; the unfunded debt leg and the venue divergence; counterparty credit quality; share-count understatement). The headline “this is worth \$17 against an \$18 tape, therefore reject” does **not** survive as stated — it depends on an unsourced \$0.5B input and an unverified profit-sharing percentage.

## PROPOSED ENTRY BANDS

**Both benches say no entry.** We are flat, we stay flat through the August 28 vote, and we do not treat the deal closing as new information. We specifically do not bid the closing print — the index and arbitrage flow around a 127M-share issuance is not our edge.

Below are the **reopen conditions**, pre-registered now so we cannot rationalize an entry later.

**Reopen requires price AND at least one verification gate:**

*Price band* - **\$11.00 or below** — this is the bear bench’s floors-plus-sharing value (\$10.65 at a \$95/kg realized basket) with a small margin, and it sits just below the 52-week low of \$11.45. At that price the entire acquisition story becomes free optionality rather than the reason for owning it. - **Study level \$13.00** — not an entry. A trigger to start the verification work (pull the merger proxy’s pro-forma pages and the technical report) so we are not doing it under time pressure at \$11.

*Verification gates* — at least one must clear in primary source text - **G1:** A per-element price × tonnage table in the technical report or merger proxy showing that \$190/kg is applied to **payable separated oxide**, not gross contained material, summing to \$800M+ at contract floors plus the actual sharing rate. - **G2:** The **offtake price-sharing percentage** in primary text. Our entire downside estimate is hostage to a number no one on the desk has read. - **G3:** Executed long-form Senior Debt Facility documentation — not the commitment letter — before December 31, 2026. - **G4:** Serra Verde’s 2025

audited financials with both material weaknesses remediated, plus actual separated-oxide (not mixed-concentrate) realized prices.

*Do-not-enter overrides (any one blocks entry regardless of price)* - An 8-K under Item 4.02 (non-reliance / restatement) at either company — this is a permanent avoid, not a discount. - Entry inside the registration/lock-up step-down window (~late Nov 2026 – Feb 2027) unless the price is at least 15% below \$11.00, since in that window we would be buying flow we ourselves predicted.

*Proposed sizing if reopened (pending a fresh review — not authorized by this deck)* - Starter **0.25% of book** at \$11.00 with G1 or G2 cleared. - Second **0.25%** only after G4 (clean audited target financials) — total maximum **0.50%**. - No adds on strength. No averaging down below \$9.00 without a new review; a break of \$9 means the sharing-rate assumption was wrong and the reopen thesis is void. - **Before any order stages:** measure position size against average daily volume. That check was impossible this session and is a precondition, not a nicety.

*Exit / trim* - Trim half at **\$17.00** (the deck-basis value on management's own assumptions — we are not paid to hold above the seller's own number). - Full exit on any Item 4.02 filing, on the debt commitment lapsing December 31 without executed documentation, or on the sharing rate printing below 50%.

**Catalyst dates** | Date | What | Confirmed? | |—|—|—| | 2026-08-28 | Special meeting / shareholder vote — majority of votes cast, only ~9% locked by voting agreements, no price collar. A failed vote leaves a company with \$13.2M of trailing revenue at roughly \$3.3B enterprise value. Unpriced in both directions. | **Yes** — 8-K primary text | | 2026-10-01 | Serra Verde's CEO becomes CEO of the combined company | **Yes** — 8-K 7/20/26 | | ~2026-11-07 | Target's audited financials and pro-forma statements due (71 days after closing) — the first hard look at the acquired books | Estimated | | 2026-11-05 | Next quarterly report | **No** — derived from a data vendor, not company-confirmed | | 2026-12-31 | \$500M bank commitment expires if not documented | **Yes** — 8-K primary text | | ~2026-11-26 to 2027-02-24 | Registration / lock-up step-down window on newly issued shares | Estimated | | 2027-12-31 | The date management's \$550–650M run-rate profit claim is supposed to be true | Company projection |

## ARMED SENSORS

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(armed provisionally with this deck; session adjudication ratifies)

- price alert: fires below 13.0 (deck-provisional: Study trigger, not entry: begin the DEFM14A pro-forma and technical-report read before the \$11 band so)
- filing watch: 8-K until 2027-02-20 (deck-provisional: Item 4.02 non-reliance/restatement at USAR or the merged entity — the only (lagging) sensor for target)
- dated pack USAR|2026-08-28: USAR: Special meeting of stockholders on the Serra Verde merger; majority of votes cast, ~9% under voting agreements, no collar. Binary and
- dated pack USAR|2026-10-01: USAR: Serra Verde CEO Moraitis becomes CEO of the combined company; Humpton retires (8-K 2026-07-20 Item 5.02). (date confirmed=True)
- dated pack USAR|2026-11-05: USAR: Next quarterly earnings report (vendor-derived date; no company PR names it). (date confirmed=False)

- dated pack USAR|2026-11-07: USAR: Approximate deadline for Form 8-K/A with Serra Verde audited financials and pro formas (~71 days after close) — first hard look at the
- dated pack USAR|2026-12-31: USAR: \$500M Senior Debt Facility commitment terminates if not documented, closed and funded; banks retain discretion to decline. (date confi
- dated pack USAR|2027-02-24: USAR: Far edge of the estimated 90-180 day registration/lock-up step-down window on PIPE, merger and Commerce Department shares. (date confi
- dated pack USAR|2027-12-31: USAR: Date by which management's \$550-650M annualized run-rate EBITDA claim is supposed to be true. (date confirmed=False)

## What remains unverified

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- **The offtake price-sharing percentage.** No document we hold contains it. Our downside case is built on a number we invented.
- **The basket basis.** Whether \$190/kg is applied to payable separated oxide or to gross contained material. The merger proxy's pro-forma pages and the technical report were not read; the investor deck timed out twice.
- **Serra Verde's standalone debt.** Never obtained. Every cash and value figure in this deck is therefore too generous.
- **The value of the existing (non-Serra-Verde) business** — the magnet plant, Round Top, Less Common Metals, Carester, Lacq. Our bear carried it at \$0.5B with no source; the market implies roughly \$3.3B. Neither bench actually valued it. **This, not the basket, is the desk's real coverage gap on this name**, and it is worth about \$7.50 per share.
- **Separation-plant capital cost.** The profit projection assumes fully separated oxide; the mine currently sells mixed concentrate. Nobody has priced the bridge.
- **Crowding, short interest, trading bands, average daily volume, peer beta.** Broker data refused to both benches. We do not know whether this is a crowded trade or how our own size would sit against it.
- **Whether the market specifically punished the August 24 filing.** No sector control was run.
- **Two satellite instruments returned nothing usable** — the construction imagery predates the spending in question, and the thermal reading is within noise.
- **The November 5 earnings date** is vendor-derived, not company-confirmed.

**Two-line honest summary:** the strongest thing we found is that the numbers selling this deal come from books their own auditor said were not reliable, disclosed two days before the vote. The weakest thing we did is claim we had proven the stock is overvalued when the proof rested on a number nobody sourced.

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